RE: FORMAL DISPUTE of Charges & Request for Records - Summerhill Association Inc. - Unit 222 - Gerald Jackson

From clientsupport@gassen.com <clientsupport@gassen.com>

To geraldjacksonjr@protonmail.com

Date Tuesday, April 29th, 2025 at 9:46 AM

Hello Gerald,

I have saved this information to your account and sent this over to your property manager, Chris who will be able to assist with getting this to the board. He will follow up with you directly about this dispute.

Best,

CHRISTIE MAJZNER

Client Support Team Lead

Gassen Company, AAMC

6438 City West Parkway | Eden Prairie, MN 55344

Office 952.922.5575 Fax 952.922.2004

www.gassen.com

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From: Gerald <geraldjacksonjr@protonmail.com>
Sent: Monday, April 28, 2025 6:02 PM
To: ClientSupport <clientsupport@gassen.com>
Subject: FORMAL DISPUTE of Charges & Request for Records - Summerhill Association Inc. - Unit 222 - Gerald Jackson

Dear Gassen Management Support Team,

Please find attached a formal letter addressed to the Summerhill Association Inc. Board of Directors, submitted via Gassen Management as the managing agent.

This letter details specific disputes regarding recent charges applied to my account for **Unit 222 (8031 Xerxes Ave S, Bloomington, MN 55431)**, as well as reiterating outstanding requests for essential Association records.

The attached letter outlines critical issues concerning:

1. The improper $1,585.00 emergency call fee charged on April 21, 2025, following a "No Heat" emergency on February 14, 2025.
2. Disputed charges related to the physical repair of the heating pipe associated with the February 14th incident.
3. The handling of consequential interior unit damage resulting from the pipe failure.
4. Outstanding requests for access to specific Association records, including the Gassen management contract and detailed balcony project financials.

As the managing agent for Summerhill Association Inc., I request that Gassen Management:

1. **Formally log receipt** of this email and the attached dispute letter.
2. Ensure this communication and the attached letter are **promptly directed to the Summerhill Association Inc. Board of Directors** (Pat Becker, Doug Kojetin, Morgan Nelson, Carolina Salazar-Torres) for their review and formal response.
3. **Acknowledge receipt** of this email and the attached letter via reply to this email address (geraldjacksonjr@protonmail.com).

The attached letter contains the full details, supporting documentation references, relevant sections of the governing documents, and the specific resolutions requested from the Association, including the timeframe expected for a formal response.

Thank you for your assistance in processing this formal communication.

Sincerely,

Gerald Jackson
Owner, Unit 222, Summerhill Association Inc.
8031 Xerxes Ave S
Bloomington, MN 55431
Email: geraldjacksonjr@protonmail.com
Phone: 651-485-9492

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258.30 KB 1 file attached 2 embedded images

Formal Dispute of Charges & Request for Records.pdf 172.42 KB

Subject: FORMAL DISPUTE of Charges & Request for Records - Unit 222 - Gerald Jackson

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To:

Summerhill Association Inc. Board of Directors

Attn: Pat Becker, Doug Kojetin, Morgan Nelson, Carolina Salazar-Torres
c/o Gassen Company

6438 City West Parkway
Eden Prairie, MN 55434

Cc:

Gassen Company

Attn: Chris Moelter, Management Representative
6438 City West Parkway

Eden Prairie, MN 55434

From:

Gerald Jackson

8031 Xerxes Ave S, Unit 222

Bloomington, MN 55431

Date: April 25, 2025

Dear Board of Directors and Gassen Management,

I am writing to formally dispute specific charges recently applied to my account ledger for Unit 222 and to reiterate my requests for access to Association records. These charges relate to an incident requiring an emergency service call on **February 14th, 2025**, concerning a lack of heat due to a burst pipe within the wall structure adjacent to my unit.

1. Dispute Regarding $1,585.00 Emergency Call Fee (Charged 04/21/25):

I strongly dispute the $1,585.00 charge described on my ledger as "Feb 14th call for water leak 2024" [(Note: The ledger date states 2024, but the incident occurred Feb 14, 2025)] which appeared on my account dated April 21, 2025.

- **Nature of Emergency & Gassen Documentation:** The call placed on February 14th was necessitated by a **"No Heat"** situation during extreme cold weather. While a burst pipe caused this, the emergency condition requiring the call was the lack of heat. "No Heat" is explicitly listed as an "Emergency Call" on the "List of Emergency and Non-Emergency Calls" provided by Gassen Management. This document provides the emergency number and procedure but **includes no warning that homeowners would be charged a fee for using the designated emergency service for a listed "No Heat" emergency.** (Other items, like "No A/C," specifically mention potential owner charges, indicating Gassen knows how to disclose such fees when intended). I relied on this official communication when placing the call.

- **Incorrect Ledger Description:** The ledger inaccurately describes the call as being for a "water leak." While a leak occurred, I immediately contained it by shutting off the valves. The emergency requiring the after-hours service call was the **loss of heat**, which directly impacted the habitability of my unit during severe weather.

- **Binding Board Decision (Meeting Minutes February 25, 2025):** Most critically, the official, approved **Board Meeting Minutes from February 25, 2025**, specifically address my situation under item 4, "Gilbert Invoice": "The board discussed the Gilbert invoice for heat repair. Emergency Fees: The Board engaged in a discussion regarding the structure of emergency fees... The Board decided to **accept and pay the recent charge for a heat repair request** but will bill back **future** emergency service calls to the homeowner." This formal resolution by the Board explicitly directs the Association to pay the charge stemming from my February 14th heat repair request. Billing me this fee now, two months after the Board voted to pay it, directly contradicts this binding decision.

Given the lack of prior notice of fees for a "No Heat" emergency call and the Board's formal recorded vote to pay this specific charge, I demand the immediate removal of this $1,585.00 fee from my account.

2. Dispute Regarding Pipe Repair Costs:

I also dispute any charges associated with the physical repair of the burst pipe itself (potentially included within the $1,585 charge or billed separately).

- **Pipe Classification & Maintenance Duty:** The pipe in question failed behind the finished wall surface near the exterior wall. Per the **Summerhill Association Declaration, Article II, Section 3**, components like pipes that lie "partially within and partially outside the designated boundaries of a Unit" (the unit boundary being the interior finished surface per Art II, Sec 2a) and which "serve only that Unit" are defined as **Limited Common Elements (LCEs)**. Subsequently, **Declaration Article IX, Section 1** assigns the responsibility for the "maintenance, repair and replacement of all Common Elements and Limited Common Elements" (except routine housekeeping) directly to the **Association**, to be done at the Association's expense.

- **Lack of Owner Causation:** Evidence found during the repair process (a visible, pre-existing patch in the sheetrock, burn marks on adjacent piping suggesting a prior, potentially faulty repair) strongly indicates this failure stemmed from a latent defect present before my ownership. This, combined with the plumber's observation of extreme cold within the wall cavity near the exterior wall (pointing to potential Common Element insulation issues), demonstrates that I did not "cause" the failure through any action or negligence, nor did I knowingly allow a hazardous condition to exist, as referenced in Declaration Article IX, Section 2c regarding owner liability.

Therefore, based on the Declaration's assignment of maintenance responsibility for LCEs to the Association and the evidence indicating the failure was not caused by me, the Association is responsible for the cost of repairing the pipe. I request the removal of any such charges from my account.

3. Consequential Damage to Unit Interior:

The failure of this Association-maintained heating pipe resulted in significant water damage to the interior of my Unit 222, necessitating the removal and replacement of sheetrock and carpet/padding.

- **Association Insurance Responsibility:** This damage was a direct consequence of the failure of an element (the LCE/CE pipe) which the Association is required to maintain and insure. **Declaration Article X, Section 1a** mandates the Association maintain casualty insurance covering "all risks of physical loss" for the **Property** (which includes units) at full replacement cost. This insurance is precisely for such events.

- **Request for Coverage & Deductible:** I request that the Association promptly file a claim under its master insurance policy to cover the restoration of my unit's damaged interior finishes (sheetrock, carpet, pad) to their original standard. Furthermore, **Declaration Article X, Section 2** allows the Association to charge back deductible amounts only against owners who caused the claim. As established above, I did not cause this failure. Therefore, any applicable master policy deductible must be treated as a **common expense** by the Association and cannot be assessed solely to my unit. Please provide details on the insurance claim process and confirmation regarding the deductible.

4. Outstanding Requests for Association Records:

I must again formally request access to essential Association records necessary for understanding operations and financial matters, access to which has been previously denied or ignored.

- **Specific Records Requested:** Pursuant to my rights under Minnesota Statute § 515B.3-118, I require access to inspect and receive copies of:
  - The current and complete management contract between Summerhill Association Inc. and Gassen Company.
  - Detailed financial records for the Balcony Replacement Project, including all invoices, payments, change orders, fee structures, loan details (if applicable), and final accounting, sufficient to verify the basis of the special assessment.
- **Previous Denials/Lack of Response:** My prior attempts to obtain these documents between April & June of 2024 with multiple emails to the board and the previous management company, and further attempted requests were mailed in September have all been unsuccessful. Additionally, communication has been hindered by the Board President's statement in response to requested documents on 5/13/2024 - that he was advised not to communicate with me.
- **Balcony Assessment Issue:** Pending receipt and review of the requested balcony financials, the application of loan charges or demands for payment under a loan structure are premature and procedurally improper, as I require this information to exercise my option to pay my share in full.

Please provide prompt access to these records as required by law.

Resolution Requested:

1. **Immediately remove** the $1,585.00 emergency call fee from my Unit 222 account ledger.
2. **Immediately remove** any charges related to the physical repair of the heating pipe from my Unit 222 account ledger.
3. Initiate a claim through the Association's master insurance policy to cover the **restoration of my unit's interior damage** (sheetrock, carpet/pad) and confirm in writing that the deductible will be treated as a common expense.
4. Provide, within 10 business days, **access to inspect and copy** the requested Association records (Gassen contract, detailed balcony financials).
5. Provide the necessary balcony project financial details to allow for a lump-sum payment of my assessment share, and cease applying any loan-related charges or interest to my account in the interim.

Please provide a written response addressing each of these points within 15 business days of the date of this letter.

Sincerely,

Gerald Jackson
Unit 222
651-485-9492
geraldjacksonjr@protonmail.com